

कोतरलिथा से लारा रम. जी. डार.
रेलवे लाईन

AREA:- 35.413 HA.

- Encl:-
1. 1st stage approval letter
03/02/2017
 2. 2nd stage approval letter
02/02/2018



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS &
CLIMATE CHANGE

F. No. FC-III/CH-39/2016-NGP / 1320

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in
Dated: 3rd February, 2017

To

Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 35.413 ha of Reserved Forests and Revenue Forests land in favour of General Manager, NTPC, Talaipalli for construction of MGR railway line from Kotarliya to LARA in Raigarh Forest Division in Raigarh District in the State of Chhattisgarh -regarding.

Sir,

I am directed to refer to the State Government of Chhattisgarh. letter no. F-513/2016/10-2 dated 25.05.2016 on the above subject seeking prior approval of the Central Government under Section - 2 of the Forest (Conservation) Act, 1980 and Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh's letter no. Bhu-Prabandh/Vividh/450/2256 dated 16.09.2016, Bhu-Prabandh/Vividh/450/115-356 dated 11.11.2016, Bhu-Prabandh/Vividh/450/2266 dated 5.12.2016 and letter no. Bhu-Prabandh/Vividh/450/115-356/230 dated 27.01.2017 forwarding additional information as sought by the Regional Office vide its letter of even number dated 17.06.2016, 5.10.2016 and 5.12.2016 and 27.12.2016, respectively and to say that proposal and to say that proposal along with the additional information received from the Nodal Officer (FCA), Government of Chhattisgarh was examined by Regional Empowered Committee (REC) constituted under Section-4 of the Forest (Conservation) Act, 1980.

After careful examination of the proposal and on the basis of the approval of the same by the Regional Empowered Committee, the Central Government hereby conveys the 'in-principle' approval for diversion of 35.413 ha of Reserved Forests and Revenue Forests land in favour of General Manager, NTPC, Talaipalli for construction of MGR railway line from Kotarliya to LARA in Raigarh Forest Division in Raigarh District in the State of Chhattisgarh subject to fulfilment of the following conditions:

- (i) Legal status of the diverted forest land shall remain unchanged;
- (ii) ~~Compensatory afforestation, over degraded forest land, equal in extent to the forest land being~~
diverted, shall be raised and maintained by the State Forest Department at the cost of the User Agency;
- (iii) The User Agency shall transfer the cost of raising and maintaining the compensatory afforestation at the current wage rate, to the State Forest Department. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- (iv) The State Government shall charge the Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard;

- (v) At the time of payment of the Net Present Value (NPV) at the then prevailing rate, the User Agency shall furnish an undertaking to pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- (vi) All the funds received from the user agency under the project, except the funds realized for regeneration/ demarcation of safety zone, shall be transferred to Ad-hoc CAMPA in the Saving Bank Account pertaining to the State concerned;
- (vii) The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- (viii) No labour camp shall be established on the forest land;
- (ix) The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- (x) The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- (xi) The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- (xii) The forest land shall not be used for any purpose other than that specified in the proposal;
- (xiii) The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- (xiv) No damage to the flora and fauna of the adjoining area shall be caused;
- (xv) Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department.
- (xvi) The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- (xvii) A Wildlife Conservation Plan for the habitat improvement, protection and conservation of Wildlife in the area shall be prepared and implemented at the project cost by the State Government in consultation with the PCCF (Wildlife), Government of Maharashtra;
- (xviii) Number and location of underpasses, if required, as per the final Wildlife management Plan to be approved by the PCCF (Wildlife), Chhattisgarh, shall be constructed by the User Agency during the project construction phase and a report on the same supported with appropriate maps clearly providing attributes related to their location such as geographical coordinates, chainage etc shall be submitted along with the compliance report;
- (xix) Patch of 3.33 ha of forest land which will be created as a result of fragmentation of bigger forest block of 265.33 ha in Compartment No. 1007, shall be fenced and afforested at the cost of the User Agency;
- (xx) The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department. A scheme of such measures may be submitted along with the compliance report;
- (xxi) The State Government shall ensure controlled speed limit if the trains passing through the forest portion to enable the trains drivers to react to the sudden appearance of the wild animals on the track. As and when required, speed of train shall be regulated in consultation with Chief Wildlife Warden of the State Government;



- (xxii) The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals;
- (xxiii) The reclamation of quarry, if any, should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed;
- (xxiv) The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable;
- (xxv) The State Government shall complete settlement of rights, in terms of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, if any, on the forest land to be diverted in accordance with the relevant guidelines issued by the MoEF;
- (xxvi) Forest land shall not be used for any kind of quarrying and muck to be generated during the construction of railway line shall be dumped with the permitted RoW;
- (xxvii) The user agency shall submit the half yearly self compliance report in respect of the above conditions on 31st July and 31st December every year to the State Government and to the concerned Regional Office of the Ministry regularly;
- (xxviii) The State Government shall ensure compliance of the above mentioned conditions and an annual report on the same shall be submitted on 31st December every year;
- (xxix) Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife;
- (xxx) The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project; and
- (xxxi) Grant of working permission to the extant proposal may be considered by the State Government in accordance with the provisions as contained in the MoEF&CC's Guidelines dated 7.01.2015.

After receipt of a report from the State Government on the compliance of conditions no. (iii), (iv), (vi), (xix), (xvii), (xviii), (xx), and undertakings in respect of rest of the conditions as indicated above, duly authenticated by the competent authority of the State Government, formal approval will be considered in this regard under Section-2 of the Forest (Conservation) Act, 1980.

Yours faithfully,

— Sd —

Charan Jeet Singh
Scientist 'C'

Copy to:

1. The PCCF, Government of Chhattisgarh, Raipur
- ✓ 2. The Nodal Officer FCA, O/o of the PCCF, Government of Chhattisgarh, Raipur.
3. The Director (ROHQ), MoEF&CC, Indira Paryavaran Bhawan, Jorbagh Road, Aliganj, New Delhi.
4. User Agency.
5. Guard File.


Charan Jeet Singh
Scientist 'C'



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Regional Office (WCZ)
Ground Floor, East Wing
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Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in
Dated: 2nd February, 2018

To

Principal Secretary (Forests),
Government of Chhattisgarh,
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Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 35.413 ha of Reserved Forests and Revenue Forests land in favour of General Manager, NTPC, Talaipalli for construction of MGR railway line from Kotarliya to LARA in Raigarh Forest Division in Raigarh District in the State of Chhattisgarh -regarding.

Sir,

I am directed to refer to the State Government of Chhattisgarh. letter no. F-513/2016/10-2 dated 25.05.2016 on the above subject seeking prior approval of the Central Government under Section - 2 of the Forest (Conservation) Act, 1980 and Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh's letter no. Bhu-Prabandh/Vividh/450/2256 dated 16.09.2016, Bhu-Prabandh/Vividh/450/115-356 dated 11.11.2016, Bhu-Prabandh/Vividh/450/2266 dated 5.12.2016 and letter no. Bhu-Prabandh/Vividh/450/115-356/230 dated 27.01.2017 forwarding additional information as sought by the Regional Office vide its letter of even number dated 17.06.2016, 5.10.2016 and 5.12.2016 and 27.12.2016, respectively. After careful examination of the proposal of the State Government 'in-principle' approval was accorded vide Regional Office of the MoEF&CC's letter of even number dated 3.02.2017 subject to fulfillment to certain conditions prescribed therein. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh submitted the compliance report of conditions stipulated in the Stage-I approval and requested to consider the proposal for grant of final approval under the Forest (Conservation) Act, 1980.

In this connection, I am further directed to inform that based on the compliance report submitted by the Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh vide his letter no. Bhu-Prabandh/Vividh/115-410/1732 dated 26.05.2017, letter no. Bhu-Prabandh/Vividh/115-356/3161 dated 28.10.2017 and letter no. Bhu-Prabandh/Vividh/115-356/46 dated 6.01.2018 'final approval' of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 is hereby accorded for diversion of Diversion of 35.413 ha of Reserved Forests and Revenue Forests land in favour of General Manager, NTPC, Talaipalli for construction of MGR railway line from Kotarliya to LARA in Raigarh Forest Division in Raigarh District in the State of Chhattisgarh subject to following conditions:

- (i) Legal status of the diverted forest land shall remain unchanged;
- (ii) Compensatory afforestation, over degraded forest land, twice in extent to the forest land being diverted, shall be raised and maintained by the State Forest Department from the funds already provided by the User Agency;
- (iii) The compensatory afforestation scheme proposed to be implemented shall include appropriate provisions for the protection of the compensatory afforestation plantation and anticipated cost increase for works scheduled for subsequent years;
- (iv) The State Government has realized Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines

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issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard. The NPV, if any becomes due in future, shall be realized by the State Government, if so determined, as per the final decision of the Hon'ble Supreme Court of India;

- (v) The User Agency shall pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- (vi) Compensatory levies, if any realized from the User Agency in future, under the project shall be transferred through e-challan to Ad-hoc Compensatory Afforestation Fund Management & Planning Agency (CAMPA) account pertaining to the State concerned;
- (vii) The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- (viii) No labour camp shall be established on the forest land;
- (ix) The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- (x) The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- (xi) The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- (xii) The forest land shall not be used for any purpose other than that specified in the proposal;
- (xiii) The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- (xiv) No damage to the flora and fauna of the adjoining area shall be caused;
- (xv) Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department.
- (xvi) The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- (xvii) Approved Wildlife Conservation Plan for the habitat improvement, protection and conservation of Wildlife in the area shall be implemented at the project cost by the State Government in consultation with the PCCF (Wildlife), Government of Maharashtra;
- (xviii) Underpasses as per the final Wildlife management Plan approved by the PCCF (Wildlife), Chhattisgarh, shall be constructed by the User Agency during the project construction phase at the locations suggested by the PCCF (Wildlife);
- (xix) Patch of 3.33 ha of forest land which will be created as a result of fragmentation of bigger forest block of 265.33 ha in Compartment No. 1007, shall be fenced and afforested at the cost of the User Agency;
- (xx) The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department as per approved scheme;
- (xxi) The State Government shall ensure controlled speed limit if the trains passing through the forest portion to enable the trains drivers to react to the sudden appearance of the wild animals on the track. As and when required, speed of train shall be regulated in consultation with Chief Wildlife Warden of the State Government;
- (xxii) The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals;



- (xxiii) The reclamation of quarry, if any, should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed;
- (xxiv) The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable;
- (xxv) The State Government shall ensure that process of settlement of rights, in terms of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, if any, has been completed on the forest land to be diverted in accordance with the relevant guidelines issued by the MoEF;
- (xxvi) Forest land shall not be used for any kind of quarrying and muck to be generated during the construction of railway line shall be dumped with the permitted RoW;
- (xxvii) The user agency shall submit the half yearly self compliance report in respect of the above conditions on 31st July and 31st December every year to the State Government and to the concerned Regional Office of the Ministry regularly;
- (xxviii) The State Government shall ensure compliance of the above mentioned conditions and an annual report on the same shall be submitted on 31st December every year;
- (xxix) Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife;
- (xxx) The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project; and

Yours faithfully,


Charan Jeet Singh
Scientist 'C'

Copy to:

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